

25STCV02236 25STCV02236

County: los-angeles

Division: Civil Law and Motion

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV02236

CONNIE

DANESE vs HILLEL NACHUM, et al.

August

18, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANTS' MOTION TO COMPEL PLAINTIFF'S FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET TWO.

RULING:

The Motion is denied.

Plaintiff to give notice.

I.

BACKGROUND

The Court incorporates by reference the Background section of the Minutes entered on July 31, 2025.

On July 20, 2026, Defendants filed the Motion seeking an Order compelling Plaintiff's verified further responses to Request for Production of Documents, Set Two, without objection, and production of all documents. Defendants also request that Plaintiff, and her counsel pay sanctions in the sum of \$1,027.50, per Code of Civil Procedure § 2023.010(d), for meritless objections after a complete waiver, and the failure to serve verified responses.

Plaintiff opposes, based on arguments that Plaintiff's finances are irrelevant, and privacy objections were not waived because Plaintiff qualifies for relief based upon counsel attending to a death in the family.

II.

LEGAL STANDARD

Where respondents object or respond inadequately to discovery requests, a motion lies to compel further responses, as to which respondent has the burden to justify the objections. (Fairmont Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255; Code Civ. Proc., § 2031.310, subd. (a) [motion to compel further responses lies "[o]n receipt of a response to an inspection demand...."].) A propounding party's remedy when it deems objections in discovery responses to be without merit is to move for an order compelling further responses. (Catalina Island Yacht Club v. Superior Court (2015) 242 Cal.App.4th 1116, 1127.)

Courts must carefully balance a right of privacy against the interest in having just litigation. (Pioneer Electronics (USA), Inc. v. Superior Court (2007) 40 Cal.4th 360, 371; Valley

Bank of Nevada v. Superior Court (1975) 15 Cal.3d 652, 657.)

"[I]ndividuals have a legally recognized privacy interest in their personal financial information." (International Federation of Professional & Technical Engineers, Local 21, AFL-CIO v. Superior Court (2007) 42 Cal.4th 319, 330.)

Third parties must be notified (e.g., by letter or e-mail) and given an opportunity to either consent or object, before discovery responses revealing their private information, and parties cannot waive such rights of third parties. (Belaire-West Landscape, Inc. v. Superior Court (2007) 149 Cal.App.4th 554, 561-562; Pioneer Electronics (USA), Inc. v. Superior Court (2007) 40 Cal.4th 360, 374-375; DOE 2 v. Superior Court (2005) 132 Cal.App.4th 1504, 1521.)

A privacy objection is not ripe for adjudication before a court where there is no factual basis for ruling, such as respondents' identifying the documents withheld in a privilege log or elsewhere. (Connecticut Indem. Co. v. Superior Court (2000) 23 Cal.4th 807, 818.)

There is a qualified privilege to withhold disclosure of tax returns, which is subject to implied waiver. (E.g., Fortunato v. Superior Court (2003) 114 Cal.App.4th 475, 482 [potential relevance alone does not render the tax-return privilege inapplicable]; Weingarten v. Superior Court (2002) 102 Cal.App.4th 268, 274; Deary v. Superior Court (2001) 87 Cal.App.4th 1072, 1079 [tax return privilege is derived from Revenue and Taxation Code and is inaccurately referred to as a constitutional right of privacy]; Schnabel v. Superior Court (1993) 5 Cal.4th 704, 721; Wilson v. Superior Court (1976) 63 Cal.App.3d 825, 831 ["Having initiated this action over her tax returns, plaintiff cannot interdict legitimate defenses thereto by asserting a privilege as to the very matters she has placed at issue in the litigation."].) Information that is an integral part of tax returns, or contained in tax returns, qualifies for the tax privilege, including documents that are required to be attached to income tax returns. (Brown v. Superior Court (1977) 71 Cal.App.3d 141, 143-144.) "[T]he [tax return] privilege is waived or does not apply where (1) there is an intentional relinquishment ..., (2) the 'gravamen of (the) lawsuit is so inconsistent with the continued

assertion of the taxpayer's privilege as to compel the conclusion that the privilege has in fact been waived ..., or (3) a public policy greater than that of confidentiality of tax returns is involved” (Sammut v. Sammut (1980) 103 Cal.App.3d 557, 560.)

Monetary

discovery sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or other injustice. (Deck v. Devs. Inv. Co. (2023) 89 Cal.App.5th 808, 830.) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 75.) “If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (Doe v. U.S. Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1435.) Courts may determine substantial justification based on the “whole picture” of the discovery dispute, including where parties partially prevailed as to some discovery items in dispute, or where discovery concessions occurred only after improperly asserted objections. (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1297.)

III.

ANALYSIS

Defendants contend that Plaintiff's counsel has no valid grounds for failing serve verified responses to the discovery after objections were waived, and where Defendants properly seek to determine any financial benefit Plaintiff received from the sale of the property to Defendant, considering Plaintiff's January 7, 2026 deposition wherein Plaintiff testified she received no such benefit.

Plaintiff summarizes the counterarguments, as follows:

No

Waiver occurred. Plaintiff's counsel was out of the office for several weeks due to an unforeseen death in the immediate family while these requests were outstanding. Immediately upon returning, counsel sought and obtained defense counsel's agreement to briefly extend the response deadline to June 8, 2026, on which date responses were served. Under established California law and Code of Civil Procedure § 2031.300(a), good cause exists to relieve Plaintiff of any technical waiver.

Financial

Privacy & Lack of Relevance. Plaintiff's private financial assets have zero relevance to whether Defendants violated local rent ordinances, breached habitability warranties, or committed wrongful eviction. Moreover, Plaintiff's deposition testimony was explicit and uncontradicted: she held no title, had no sales agreement, and received no proceeds from the sale of the property. Seeking her private trust and tax records under the guise of "impeachment" falls far short of the high legal standard required to overcome the California constitutional privilege of financial privacy.

(Opposition, 2:12-22.)

Importantly, discovery of information about credibility must be reasonably calculated to lead to the discovery of admissible evidence, which requires the existence of a contradictory statement that is not collateral to the merits, particularly where direct relevance is required to overcome a right of privacy. (Mendez v. Superior Court (1988) 206 Cal.App.3d 557, 576–577, disapproved of on other grounds by Williams v. Superior Court (2023) 3 Cal. 5th 531, and abrogated by Doe v. Superior Court (2023) 15 Cal.5th 40.)

Additionally, parties cannot add late objections after service of initial discovery responses, absent a court order pursuant to a motion for relief from waivers. (Code Civ. Proc., §§ 2030.290, subd. (a) and 2031.300, subd. (a) ["The court, on motion, may relieve that party from this waiver, based upon conditions that response in substantial compliance was served, and the failure was result of mistake, inadvertence or excusable neglect."]; Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 408; Scottsdale Ins. Co. v. Superior Court (1997) 59 Cal.App.4th 263, 276 [court did not err in denying ex parte application for relief from waiver of discovery objections]. See also generally Cal. Prac. Guide Civ. Pro. Before Trial, § 8:1023; and O'Connor's California Practice Civil Pretrial (2026 ed.), § 3.3 [available on Westlaw].)

Here, Defendant's relevance argument is: "Documents within Plaintiff's possession which tends to show she received such a benefit or compensation is directly relevant to her credibility as a witness, and whether there was a separate motive or bias

fueling her decision to file suit against Moving Defendants.” (E.g., Reply, 4:15-17.)

The Court determines that the sought information is not reasonably calculated to lead to the discovery of admissible evidence, where Plaintiff’s theoretical lack of credibility about not being financially enriched by the real property sale, and hidden motive for suing, are merely collateral issues in relation to the merits of the alleged Causes of Action. Complainants’ finances and motive are not any element of the Causes of Action listed in Plaintiff’s Complaint distinguishably focusing upon wrongful eviction, habitability and elder abuse. (Cf., *Kajima Eng’g & Const., Inc. v. City of Los Angeles* (2002) 95 Cal.App.4th 921, 934 [“If a cross-defendant believes that a cross-complaint has been filed ‘for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation,’ ... then it may move for sanctions, including attorney fees and other expenses.”].)

For instance, the elements of Plaintiff’s Cause of Action for Breach of Implied Warranty of Habitability, are these:

Materially
defective condition affecting habitability;

defective
condition was unknown to the tenant at time of occupancy;

effect on
habitability of the defective condition was not apparent on reasonable
inspection;

notice given to
landlord within a reasonable time after the tenant discovered, or should
have discovered, breach; and

damages.

(*Quevedo v. Braga* (1977) 72 Cal.App.3d Supp. 1, 7-8.)

Because of the above
determination about Defendants’ collateral inquiries, and since Plaintiff has filed
no Motion for Relief from Waiver of Objections, the Court need not reach

whether privacy objections were waived by late responses, or apply the balancing test as to whether need for credibility or financial information would suffice to overcome Plaintiff's privacy interests.

Lastly, as for Defendants' sanctions request, the Court finds substantial justification for Plaintiff's positions, as analyzed herein.

IV.

CONCLUSION

Accordingly, the Motion is denied.